

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn**

Date: August 11, 2014

Deputy Clerk: Kathleen Finney
Court Reporter: Tracy Weir

Civil Action No. 11-cv-01765-REB-BNB

Parties:

YAO-HUNG HUANG, and
BIG TIME AUTO PARTS
MANUFACTURING, INC. a Taiwan
corporation,

Plaintiffs,

v.

MARKLYN GROUP INC, a Canadian
corporation, d/b/a Alpena,

Defendant.

Counsel:

Aaron Bradford
Alexander Clayden

James Jablonski

COURTROOM MINUTES

Trial to Jury - Day Six.

8:37 a.m. Court in session.

Defendant's witness, Gabor Kiss, resumes the witness stand.

8:38 a.m. Jury is present.

8:39 a.m. Continued direct examination by Mr. Jablonski.

Witness proffered and accepted as an expert.

***Exhibits Identified:* 122, 95.**

***Exhibits Admitted:* 122.**

9:10 a.m. Cross examination by Mr. Bradford.

Exhibits Identified: 132.

10:02 a.m. Redirect examination by Mr. Jablonski.

10:04 a.m. Witness excused and released from subpoena.

Court advises jurors regarding admonitions of trial during the break.

10:05 a.m. Court in recess.

10:29 a.m. Court in session.

10:30 a.m. Jury is present.

Defendant's witness, Paul Tokiwa, called and sworn.

10:31 a.m. Direct examination by Mr. Jablonksi.

10:49 a.m. Cross examination by Mr. Clayden.

11:11 a.m. Redirect examination by Mr. Jablonski.

11:12 a.m. Witness is excused and released from subpoena.

Defendant rests.

Plaintiff has no rebuttal evidence to present.

Parties confirm that evidence is now complete.

Court advises jurors regarding admonitions of trial during the lunch break. Jurors to return at 1:30 p.m.

11:14 a.m. Jury exits.

Court will proceed to post-evidentiary proceedings and finalize the charging conference after the recess.

11:16 a.m. Court in recess.

11:34 a.m. Court in session.

Out of the presence of the jury.

Post-evidentiary proceedings.

Plaintiffs' oral motions for judgment as a matter of law under Rule 50(a).

Responses by Mr. Jablonski.

Replies by Mr. Bradford.

Defendant's oral motion for judgment as a matter of law under Rule 50(a).

Response by Mr. Bradford.

Reply by Mr. Jablonski.

12:33 p.m. Court in recess.

1:13 p.m. Court in session.

Outside the presence of the jury.

Court's findings, conclusions, and orders.

Continued charging conference.

1:46 p.m. Court in recess.

2:30 p.m. Court in session.

Out of the presence of the jury.

Courtroom deputy delivers copies of the final jury instructions and verdict form to counsel.

Exhibits # 42 - 44, 132, and 177 are excluded from the evidence made available to the jury.

2:37 p.m. Jury is present.

Courtroom deputy delivers copies of the jury instructions to the jury.

Court instructs jury.

3:27 p.m. Closing argument by Mr. Bradford.

4:11 p.m. Court in recess.

Courtroom deputy clerk has provided jurors and counsel with revised copies of corrected jury instructions.

4:26 p.m. Court in session.

4:26 p.m. Jury is present.

4:27 p.m. Closing argument by Mr. Jablonski.

5:15 p.m. Rebuttal argument by Mr. Bradford.

5:20 p.m. Court's final instructions to the jury. Court advises jurors regarding admonitions of trial. Jury is in recess until Tuesday, August 12, 2014, commencing at 8:30 a.m. (MDT) to commence deliberations.

5:21 p.m. Jury exits.

Court directs counsel to provide reliable contact information to the courtroom deputy clerk and to remain within ten minutes of the courtroom. Unless a question or notice of verdict are sooner received, court will reconvene Tuesday, August 12, 2014, commencing at approximately 4:45 p.m. (MDT).

5:24 p.m. Court in recess.

Total time in court: 06:26

Trial continued.